One of the early skirmishes involved the issue of whether, as the petitioners contended, the court could issue notice to the governor seeking his participation in the proceedings. The court concluded that it could not do so (since Article 361 of the Constitution states that the governor cannot be held answerable to a court for the exercise of his powers), but that it could nevertheless scrutinize his reports and the proclamation issued by the President. According to the Supreme Court, the governor enjoyed immunity, but his decisions and reports did not. President Kalam keenly followed the proceedings in the Supreme Court, and was not pleased with the way his decision was presented to the court.[7] Kalam noted that the court had not been fully apprised of his discussions with the government, and the sequence of events that had taken place when he was in Moscow.

This case offered a good example of how the courts often struggle to keep up with the pace of politics. On 3 September 2005, the Election Commission announced dates for fresh elections in Bihar. Elections would take place in four phases, with voting to commence on 18 October and to conclude on 19 November. By that stage, though the writ petitions had been filed, the hearing at the Supreme Court had not even begun. This presented a quandary for the court. If it decided that the dissolution of the assembly was unconstitutional, what remedy could it offer the petitioners if the next elections were already under way or concluded? Could it reconstitute the dissolved assembly despite the people's fresh mandate and the time and money spent on the next elections? Matters would be more complicated if the fresh mandate was vastly different from the mandate within the dissolved assembly, as the court would effectively be reinstating a government that had lost its popular legitimacy.

Ultimately, the Supreme Court swiftly concluded the hearing by 29 September 2005, over a period of six days. Political parties were left in suspense on the last day of the hearing, as the bench observed, 'We want to allay impressions and conjectures and surmises about the time when the verdict would be delivered. Considering the nature of the cases, we will not be able to give judgment before October 18. We may come out with a short judgment, if necessary, before 18 October and the detailed judgment will